Objection 2: Further, just as certain judicial precepts were given to the Jewish people, so also were some given to other heathen peoples. But the judicial precepts given to other peoples were not figurative, but stated what had to be done. Therefore it seems that neither were the judicial precepts of the Old Law figures of anything.

Objection 3: Further, those things which relate to the divine worship had to be taught under certain figures, because the things of God are above our reason, as stated above (Q[101], A[2], ad 2). But things concerning our neighbor are not above our reason. Therefore the judicial precepts which direct us in relation to our neighbor should not have been figurative.

On the contrary, The judicial precepts are expounded both in the allegorical and in the moral sense (Ex. 21).

I answer that, A precept may be figurative in two ways. First, primarily and in itself: because, to wit, it is instituted principally that it may be the figure of something. In this way the ceremonial precepts are figurative; since they were instituted for the very purpose that they might foreshadow something relating to the worship of God and the mystery of Christ. But some precepts are figurative, not primarily and in themselves, but consequently. In this way the judicial precepts of the Old Law are figurative. For they were not instituted for the purpose of being figurative, but in order that they might regulate the state of that people according to justice and equity. Nevertheless they did foreshadow something consequently: since, to wit, the entire state of that people, who were directed by these precepts, was figurative, according to 1 Cor. 10:11: "All . . . things happened to them in figure."

Reply to Objection 1: The ceremonial precepts are not figurative in the same way as the judicial precepts, as explained above.

Reply to Objection 2: The Jewish people were chosen by God that Christ might be born of them. Consequently the entire state of that people had to be prophetic and figurative, as Augustine states (Contra Faust. xxii, 24). For this reason even the judicial precepts that were given to this people were more figurative that those which were given to other nations. Thus, too, the wars and deeds of this people are expounded in the mystical sense: but not the wars and deeds of the Assyrians or Romans, although the latter are more famous in the eyes of men.

Reply to Objection 3: In this people the direction of man in regard to his neighbor, considered in itself, was subject to reason. But in so far as it was referred to the worship of God, it was above reason: and in this respect it was figurative.

Whether the judicial precepts of the Old Law bind for ever?

Objection 1: It would seem that the judicial precepts of the Old Law bind for ever. Because the judicial precepts relate to the virtue of justice: since a judgment is an execution of the virtue of justice. Now "justice is perpetual and immortal" (Wis. 1:15). Therefore the judicial precepts bind for ever.

Objection 2: Further, Divine institutions are more enduring than human institutions. But the judicial precepts of human laws bind for ever. Therefore much more do the judicial precepts of the Divine Law.

Objection 3: Further, the Apostle says (Heb. 7:18) that "there is a setting aside of the former commandment, because of the weakness and unprofitableness thereof." Now this is true of the

ceremonial precept, which "could [Vulg.: 'can'] not, as to the conscience, make him perfect that serveth only in meats and in drinks, and divers washings and justices of the flesh," as the Apostle declares (Heb. 9:9,10). On the other hand, the judicial precepts were useful and efficacious in respect of the purpose for which they were instituted, viz. to establish justice and equity among men. Therefore the judicial precepts of the Old Law are not set aside, but still retain their efficacy.

On the contrary, The Apostle says (Heb. 7:12) that "the priesthood being translated it is necessary that a translation also be made of the Law." But the priesthood was transferred from Aaron to Christ. Therefore the entire Law was also transferred. Therefore the judicial precepts are no longer in force.

I answer that, The judicial precepts did not bind for ever, but were annulled by the coming of Christ: yet not in the same way as the ceremonial precepts. For the ceremonial precepts were annulled so far as to be not only "dead," but also deadly to those who observe them since the coming of Christ, especially since the promulgation of the Gospel. On the other hand, the judicial precepts are dead indeed, because they have no binding force: but they are not deadly. For if a sovereign were to order these judicial precepts to be observed in his kingdom, he would not sin: unless perchance they were observed, or ordered to be observed, as though they derived their binding force through being institutions of the Old Law: for it would be a deadly sin to intend to observe them thus.

The reason for this difference may be gathered from what has been said above (A[2]). For it has been stated that the ceremonial precepts are figurative primarily and in themselves, as being instituted chiefly for the purpose of foreshadowing the mysteries of Christ to come. On the other hand, the judicial precepts were not instituted that they might be figures, but that they might shape the state of that people who were directed to Christ. Consequently, when the state of that people changed with the coming of Christ, the judicial precepts lost their binding force: for the Law was a pedagogue, leading men to Christ, as stated in Gal. 3:24. Since, however, these judicial precepts are instituted, not for the purpose of being figures, but for the performance of certain deeds, the observance thereof is not prejudicial to the truth of faith. But the intention of observing them, as though one were bound by the Law, is prejudicial to the truth of faith: because it would follow that the former state of the people still lasts, and that Christ has not yet come.

Reply to Objection 1: The obligation of observing justice is indeed perpetual. But the determination of those things that are just, according to human or Divine institution, must needs be different, according to the different states of mankind.

Reply to Objection 2: The judicial precepts established by men retain their binding force for ever, so long as the state of government remains the same. But if the state or nation pass to another form of government, the laws must needs be changed. For democracy, which is government by the people, demands different laws from those of oligarchy, which is government by the rich, as the Philosopher shows (Polit. iv, 1). Consequently when the state of that people changed, the judicial precepts had to be changed also.

Reply to Objection 3: Those judicial precepts directed the people to justice and equity, in keeping with the demands of that state. But after the coming of Christ, there had to be a change in the state of that people, so that in Christ there was no distinction between Gentile and Jew, as there had been before. For this reason the judicial precepts needed to be changed also.

Whether it is possible to assign a distinct division of the judicial precepts?

Objection 1: It would seem that it is impossible to assign a distinct division of the judicial precepts. Because the judicial precepts direct men in their relations to one another. But those things which need to be directed, as pertaining to the relationship between man and man, and which are made use of by men, are not subject to division, since they are infinite in number. Therefore it is not possible to assign a distinct division of the judicial precepts.

Objection 2: Further, the judicial precepts are decisions on moral matters. But moral precepts do not seem to be capable of division, except in so far as they are reducible to the precepts of the decalogue. Therefore there is no distinct division of the judicial precepts.

Objection 3: Further, because there is a distinct division of the ceremonial precepts, the Law alludes to this division, by describing some as "sacrifices," others as "observances." But the Law contains no allusion to a division of the judicial precepts. Therefore it seems that they have no distinct division.

On the contrary, Wherever there is order there must needs be division. But the notion of order is chiefly applicable to the judicial precepts, since thereby that people was ordained. Therefore it is most necessary that they should have a distinct division.

I answer that, Since law is the art, as it were, of directing or ordering the life of man, as in every art there is a distinct division in the rules of art, so, in every law, there must be a distinct division of precepts: else the law would be rendered useless by confusion. We must therefore say that the judicial precepts of the Old Law, whereby men were directed in their relations to one another, are subject to division according to the divers ways in which man is directed.

Now in every people a fourfold order is to be found: one, of the people's sovereign to his subjects; a second of the subjects among themselves; a third, of the citizens to foreigners; a fourth, of members of the same household, such as the order of the father to his son; of the wife to her husband; of the master to his servant: and according to these four orders we may distinguish different kinds of judicial precepts in the Old Law. For certain precepts are laid down concerning the institution of the sovereign and relating to his office, and about the respect due to him: this is one part of the judicial precepts. Again, certain precepts are given in respect of a man to his fellow citizens: for instance, about buying and selling, judgments and penalties: this is the second part of the judicial precepts. Again, certain precepts are enjoined with regard to foreigners: for instance, about wars waged against their foes, and about the way to receive travelers and strangers: this is the third part of the judicial precepts. Lastly, certain precepts are given relating to home life: for instance, about servants, wives and children: this is the fourth part of the judicial precepts.

Reply to Objection 1: Things pertaining to the ordering of relations between one man and another are indeed infinite in number: yet they are reducible to certain distinct heads, according to the different relations in which one man stands to another, as stated above.

Reply to Objection 2: The precepts of the decalogue held the first place in the moral order, as stated above (Q[100], A[3]): and consequently it is fitting that other moral precepts should be distinguished in relation to them. But the judicial and ceremonial precepts have a different binding force, derived, not from natural reason, but from their institution alone. Hence there is a distinct reason for distinguishing them.

Reply to Objection 3: The Law alludes to the division of the judicial precepts in the very things themselves which are prescribed by the judicial precepts of the Law.

OF THE REASON FOR THE JUDICIAL PRECEPTS (FOUR ARTICLES)

We must now consider the reason for the judicial precepts: under which head there are four points of inquiry:

(1) Concerning the reason for the judicial precepts relating to the rulers;

(2) Concerning the fellowship of one man with another;

(3) Concerning matters relating to foreigners;

(4) Concerning things relating to domestic matters.

Whether the Old Law enjoined fitting precepts concerning rulers?

Objection 1: It would seem that the Old Law made unfitting precepts concerning rulers. Because, as the Philosopher says (Polit. iii, 4), "the ordering of the people depends mostly on the chief ruler." But the Law contains no precept relating to the institution of the chief ruler; and yet we find therein prescriptions concerning the inferior rulers: firstly (Ex. 18:21): "Provide out of all the people wise [Vulg.: 'able'] men," etc.; again (Num. 11:16): "Gather unto Me seventy men of the ancients of Israel"; and again (Dt. 1:13): "Let Me have from among you wise and understanding men," etc. Therefore the Law provided insufficiently in regard to the rulers of the people.

Objection 2: Further, "The best gives of the best," as Plato states (Tim. ii). Now the best ordering of a state or of any nation is to be ruled by a king: because this kind of government approaches nearest in resemblance to the Divine government, whereby God rules the world from the beginning. Therefore the Law should have set a king over the people, and they should not have been allowed a choice in the matter, as indeed they were allowed (Dt. 17:14,15): "When thou . . . shalt say: I will set a king over me . . . thou shalt set him," etc.

Objection 3: Further, according to Mat. 12:25: "Every kingdom divided against itself shall be made desolate": a saying which was verified in the Jewish people, whose destruction was brought about by the division of the kingdom. But the Law should aim chiefly at things pertaining to the general well-being of the people. Therefore it should have forbidden the kingdom to be divided under two kings: nor should this have been introduced even by Divine authority; as we read of its being introduced by the authority of the prophet Ahias the Silonite (3 Kings 11:29, seqq.).

Objection 4: Further, just as priests are instituted for the benefit of the people in things concerning God, as stated in Heb. 5:1; so are rulers set up for the benefit of the people in human affairs. But certain things were allotted as a means of livelihood for the priests and Levites of the Law: such as the tithes and first-fruits, and many like things. Therefore in like manner certain things should have been determined for the livelihood of the rulers of the people: the more that they were forbidden to accept presents, as is clearly stated in Ex. 23:8: "You shall not [Vulg.: 'Neither shalt thou'] take bribes, which even blind the wise, and pervert the words of the just."

Objection 5: Further, as a kingdom is the best form of government, so is tyranny the most corrupt. But when the Lord appointed the king, He established a tyrannical law; for it is written (1 Kings 8:11): "This will be the right of the king, that shall reign over you: He will take your sons," etc. Therefore the Law made unfitting provision with regard to the institution of rulers.

On the contrary, The people of Israel is commended for the beauty of its order (Num. 24:5): "How beautiful are thy tabernacles, O Jacob, and thy tents." But the beautiful ordering of a people depends on the right establishment of its rulers. Therefore the Law made right provision for the people with regard to its rulers.

I answer that, Two points are to be observed concerning the right ordering of rulers in a state or nation. One is that all should take some share in the government: for this form of constitution ensures peace among the people, commends itself to all, and is most enduring, as stated in Polit. ii, 6. The other point is to be observed in respect of the kinds of government, or the different ways in which the constitutions are established. For whereas these differ in kind, as the Philosopher states (Polit. iii, 5), nevertheless the first place is held by the "kingdom," where the power of government is vested in one; and "aristocracy," which signifies government by the best, where the power of government is vested in a few. Accordingly, the best form of government is in a state or kingdom, where one is given the power to preside over all; while under him are others having governing powers: and yet a government of this kind is shared by all, both because all are eligible to govern, and because the rules are chosen by all. For this is the best form of polity, being partly kingdom, since there is one at the head of all; partly aristocracy, in so far as a number of persons are set in authority; partly democracy, i.e. government by the people, in so far as the rulers can be chosen from the people, and the people have the right to choose their rulers.

Such was the form of government established by the Divine Law. For Moses and his successors governed the people in such a way that each of them was ruler over all; so that there was a kind of kingdom. Moreover, seventy-two men were chosen, who were elders in virtue: for it is written (Dt. 1:15): "I took out of your tribes wise and honorable, and appointed them rulers": so that there was an element of aristocracy. But it was a democratical government in so far as the rulers were chosen from all the people; for it is written (Ex. 18:21): "Provide out of all the people wise [Vulg.: 'able'] men," etc.; and, again, in so far as they were chosen by the people; wherefore it is written (Dt. 1:13): "Let me have from among you wise [Vulg.: 'able'] men," etc. Consequently it is evident that the ordering of the rulers was well provided for by the Law.

Reply to Objection 1: This people was governed under the special care of God: wherefore it is written (Dt. 7:6): "The Lord thy God hath chosen thee to be His peculiar people": and this is why the Lord reserved to Himself the institution of the chief ruler. For this too did Moses pray (Num. 27:16): "May the Lord the God of the spirits of all the flesh provide a man, that may be over this multitude." Thus by God's orders Josue was set at the head in place of Moses; and we read about each of the judges who succeeded Josue that God "raised . . . up a saviour" for the people, and that "the spirit of the Lord was" in them (Judges 3:9,10,15). Hence the Lord did not leave the choice of a king to the people; but reserved this to Himself, as appears from Dt. 17:15: "Thou shalt set him whom the Lord thy God shall choose."

Reply to Objection 2: A kingdom is the best form of government of the people, so long as it is not corrupt. But since the power granted to a king is so great, it easily degenerates into tyranny, unless he to whom this power is given be a very virtuous man: for it is only the virtuous man that conducts himself well in the midst of prosperity, as the Philosopher observes (Ethic. iv, 3). Now perfect virtue is to be found in few: and especially were the Jews inclined to cruelty and avarice, which vices above all turn men into tyrants. Hence from the very first the Lord did not set up the kingly authority with full power, but gave them judges and governors to rule them. But afterwards when the people asked Him to do so, being indignant with them, so to speak, He granted them a king, as is clear from His words to Samuel (1 Kings 8:7): "They have not rejected thee, but Me, that I should not reign over them."

Nevertheless, as regards the appointment of a king, He did establish the manner of election from the very beginning (Dt. 17:14, seqq.): and then He determined two points: first, that in choosing

a king they should wait for the Lord's decision; and that they should not make a man of another nation king, because such kings are wont to take little interest in the people they are set over, and consequently to have no care for their welfare: secondly, He prescribed how the king after his appointment should behave, in regard to himself; namely, that he should not accumulate chariots and horses, nor wives, nor immense wealth: because through craving for such things princes become tyrants and forsake justice. He also appointed the manner in which they were to conduct themselves towards God: namely, that they should continually read and ponder on God's Law, and should ever fear and obey God. Moreover, He decided how they should behave towards their subjects: namely, that they should not proudly despise them, or ill-treat them, and that they should not depart from the paths of justice.

Reply to Objection 3: The division of the kingdom, and a number of kings, was rather a punishment inflicted on that people for their many dissensions, specially against the just rule of David, than a benefit conferred on them for their profit. Hence it is written (Osee 13:11): "I will give thee a king in My wrath"; and (Osee 8:4): "They have reigned, but not by Me: they have been princes, and I knew not."

Reply to Objection 4: The priestly office was bequeathed by succession from father to son: and this, in order that it might be held in greater respect, if not any man from the people could become a priest: since honor was given to them out of reverence for the divine worship. Hence it was necessary to put aside certain things for them both as to tithes and as to first-fruits, and, again, as to oblations and sacrifices, that they might be afforded a means of livelihood. On the other hand, the rulers, as stated above, were chosen from the whole people; wherefore they had their own possessions, from which to derive a living: and so much the more, since the Lord forbade even a king to have superabundant wealth to make too much show of magnificence: both because he could scarcely avoid the excesses of pride and tyranny, arising from such things, and because, if the rulers were not very rich, and if their office involved much work and anxiety, it would not tempt the ambition of the common people; and would not become an occasion of sedition.

Reply to Objection 5: That right was not given to the king by Divine institution: rather was it foretold that kings would usurp that right, by framing unjust laws, and by degenerating into tyrants who preyed on their subjects. This is clear from the context that follows: "And you shall be his slaves [Douay: 'servants']": which is significative of tyranny, since a tyrant rules is subjects as though they were his slaves. Hence Samuel spoke these words to deter them from asking for a king; since the narrative continues: "But the people would not hear the voice of Samuel." It may happen, however, that even a good king, without being a tyrant, may take away the sons, and make them tribunes and centurions; and may take many things from his subjects in order to secure the common weal.

Whether the judicial precepts were suitably framed as to the relations of one man with another?

Objection 1: It would seem that the judicial precepts were not suitably framed as regards the relations of one man with another. Because men cannot live together in peace, if one man takes what belongs to another. But this seems to have been approved by the Law: since it is written (Dt. 23:24): "Going into thy neighbor's vineyard, thou mayest eat as many grapes as thou pleasest." Therefore the Old Law did not make suitable provisions for man's peace.

Objection 2: Further, one of the chief causes of the downfall of states has been the holding of property by women, as the Philosopher says (Polit. ii, 6). But this was introduced by the Old Law; for it is written (Num. 27:8): "When a man dieth without a son, his inheritance shall pass to his daughter." Therefore the Law made unsuitable provision for the welfare of the people.

Objection 3: Further, it is most conducive to the preservation of human society that men may provide themselves with necessaries by buying and selling, as stated in Polit. i. But the Old Law took away the force of sales; since it prescribes that in the 50th year of the jubilee all that is sold shall return to the vendor (Lev. 25:28). Therefore in this matter the Law gave the people an unfitting command.

Objection 4: Further, man's needs require that men should be ready to lend: which readiness ceases if the creditors do not return the pledges: hence it is written (Ecclus. 29:10): "Many have refused to lend, not out of wickedness, but they were afraid to be defrauded without cause." And yet this was encouraged by the Law. First, because it prescribed (Dt. 15:2): "He to whom any thing is owing from his friend or neighbor or brother, cannot demand it again, because it is the year of remission of the Lord"; and (Ex. 22:15) it is stated that if a borrowed animal should die while the owner is present, the borrower is not bound to make restitution. Secondly, because the security acquired through the pledge is lost: for it is written (Dt. 24:10): "When thou shalt demand of thy neighbor any thing that he oweth thee, thou shalt not go into his house to take away a pledge"; and again (Dt. 24:12,13): "The pledge shall not lodge with thee that night, but thou shalt restore it to him presently." Therefore the Law made insufficient provision in the matter of loans.

Objection 5: Further, considerable risk attaches to goods deposited with a fraudulent depositary: wherefore great caution should be observed in such matters: hence it is stated in 2 Mac. 3:15 that "the priests . . . called upon Him from heaven, Who made the law concerning things given to be kept, that He would preserve them safe, for them that had deposited them." But the precepts of the Old Law observed little caution in regard to deposits: since it is prescribed (Ex. 22:10,11) that when goods deposited are lost, the owner is to stand by the oath of the depositary. Therefore the Law made unsuitable provision in this matter.

Objection 6: Further, just as a workman offers his work for hire, so do men let houses and so forth. But there is no need for the tenant to pay his rent as soon as he takes a house. Therefore it seems an unnecessarily hard prescription (Lev. 19:13) that "the wages of him that hath been hired by thee shall not abide with thee until morning."

Objection 7: Further, since there is often pressing need for a judge, it should be easy to gain access to one. It was therefore unfitting that the Law (Dt. 17:8,9) should command them to go to a fixed place to ask for judgment on doubtful matters.

Objection 8: Further, it is possible that not only two, but three or more, should agree to tell a lie. Therefore it is unreasonably stated (Dt. 19:15) that "in the mouth of two or three witnesses every word shall stand."

Objection 9: Further, punishment should be fixed according to the gravity of the fault: for which reason also it is written (Dt. 25:2): "According to the measure of the sin, shall the measure also of the stripes be." Yet the Law fixed unequal punishments for certain faults: for it is written (Ex. 22:1) that the thief "shall restore five oxen for one ox, and four sheep for one sheep." Moreover, certain slight offenses are severely punished: thus (Num. 15:32, seqq.) a man is stoned for gathering sticks on the sabbath day: and (Dt. 21:18, seqq.) the unruly son is commanded to be stoned on

account of certain small transgressions, viz. because "he gave himself to revelling . . . and banquetings." Therefore the Law prescribed punishments in an unreasonable manner.

Objection 10: Further, as Augustine says (De Civ. Dei xxi, 11), "Tully writes that the laws recognize eight forms of punishment, indemnity, prison, stripes, retaliation, public disgrace, exile, death, slavery." Now some of these were prescribed by the Law. "Indemnity," as when a thief was condemned to make restitution fivefold or fourfold. "Prison," as when (Num. 15:34) a certain man is ordered to be imprisoned. "Stripes"; thus (Dt. 25:2), "if they see that the offender be worthy of stripes; they shall lay him down, and shall cause him to be beaten before them." "Public disgrace" was brought on to him who refused to take to himself the wife of his deceased brother, for she took "off his shoe from his foot, and" did "spit in his face" (Dt. 25:9). It prescribed the "death" penalty, as is clear from (Lev. 20:9): "He that curseth his father, or mother, dying let him die." The Law also recognized the "lex talionis," by prescribing (Ex. 21:24): "Eye for eye, tooth for tooth." Therefore it seems unreasonable that the Law should not have inflicted the two other punishments, viz. "exile" and "slavery."

Objection 11: Further, no punishment is due except for a fault. But dumb animals cannot commit a fault. Therefore the Law is unreasonable in punishing them (Ex. 21:29): "If the ox . . . shall kill a man or a woman," it "shall be stoned": and (Lev. 20:16): "The woman that shall lie under any beast, shall be killed together with the same." Therefore it seems that matters pertaining to the relations of one man with another were unsuitably regulated by the Law.

Objection 12: Further, the Lord commanded (Ex. 21:12) a murderer to be punished with death. But the death of a dumb animal is reckoned of much less account than the slaying of a man. Hence murder cannot be sufficiently punished by the slaying of a dumb animal. Therefore it is unfittingly prescribed (Dt. 21:1,4) that "when there shall be found . . . the corpse of a man slain, and it is not known who is guilty of the murder . . . the ancients" of the nearest city "shall take a heifer of the herd, that hath not drawn in the yoke, nor ploughed the ground, and they shall bring her into a rough and stony valley, that never was ploughed, nor sown; and there they shall strike off the head of the heifer."

On the contrary, It is recalled as a special blessing (Ps. 147:20) that "He hath not done in like manner to every nation; and His judgments He hath not made manifest to them."

I answer that, As Augustine says (De Civ. Dei ii, 21), quoting Tully, "a nation is a body of men united together by consent to the law and by community of welfare." Consequently it is of the essence of a nation that the mutual relations of the citizens be ordered by just laws. Now the relations of one man with another are twofold: some are effected under the guidance of those in authority: others are effected by the will of private individuals. And since whatever is subject to the power of an individual can be disposed of according to his will, hence it is that the decision of matters between one man and another, and the punishment of evildoers, depend on the direction of those in authority, to whom men are subject. On the other hand, the power of private persons is exercised over the things they possess: and consequently their dealings with one another, as regards such things, depend on their own will, for instance in buying, selling, giving, and so forth. Now the Law provided sufficiently in respect of each of these relations between one man and another. For it established judges, as is clearly indicated in Dt. 16:18: "Thou shalt appoint judges and magistrates in all its [Vulg.: 'thy'] gates . . . that they may judge the people with just judgment." It is also directed the manner of pronouncing just judgments, according to Dt. 1:16,17: "Judge that which is just, whether he be one of your own country or a stranger: there shall be no difference of persons." It

also removed an occasion of pronouncing unjust judgment, by forbidding judges to accept bribes (Ex. 23:8; Dt. 16:19). It prescribed the number of witnesses, viz. two or three: and it appointed certain punishments to certain crimes, as we shall state farther on (ad 10).

But with regard to possessions, it is a very good thing, says the Philosopher (Polit. ii, 2) that the things possessed should be distinct, and the use thereof should be partly common, and partly granted to others by the will of the possessors. These three points were provided for by the Law. Because, in the first place, the possessions themselves were divided among individuals: for it is written (Num. 33:53,54): "I have given you" the land "for a possession: and you shall divide it among you by lot." And since many states have been ruined through want of regulations in the matter of possessions, as the Philosopher observes (Polit. ii, 6); therefore the Law provided a threefold remedy against the regularity of possessions. The first was that they should be divided equally, wherefore it is written (Num. 33:54): "To the more you shall give a larger part, and to the fewer, a lesser." A second remedy was that possessions could not be alienated for ever, but after a certain lapse of time should return to their former owner, so as to avoid confusion of possessions (cf. ad 3). The third remedy aimed at the removal of this confusion, and provided that the dead should be succeeded by their next of kin: in the first place, the son; secondly, the daughter; thirdly, the brother; fourthly, the father's brother; fifthly, any other next of kin. Furthermore, in order to preserve the distinction of property, the Law enacted that heiresses should marry within their own tribe, as recorded in Num. 36:6.

Secondly, the Law commanded that, in some respects, the use of things should belong to all in common. Firstly, as regards the care of them; for it was prescribed (Dt. 22:1-4): "Thou shalt not pass by, if thou seest thy brother's ox or his sheep go astray; but thou shalt bring them back to thy brother," and in like manner as to other things. Secondly, as regards fruits. For all alike were allowed on entering a friend's vineyard to eat of the fruit, but not to take any away. And, specially, with respect to the poor, it was prescribed that the forgotten sheaves, and the bunches of grapes and fruit, should be left behind for them (Lev. 19:9; Dt. 24:19). Moreover, whatever grew in the seventh year was common property, as stated in Ex. 23:11 and Lev. 25:4.

Thirdly, the law recognized the transference of goods by the owner. There was a purely gratuitous transfer: thus it is written (Dt. 14:28,29): "The third day thou shalt separate another tithe . . . and the Levite . . . and the stranger, and the fatherless, and the widow . . . shall come and shall eat and be filled." And there was a transfer for a consideration, for instance, by selling and buying, by letting out and hiring, by loan and also by deposit, concerning all of which we find that the Law made ample provision. Consequently it is clear that the Old Law provided sufficiently concerning the mutual relations of one man with another.

Reply to Objection 1: As the Apostle says (Rom. 13:8), "he that loveth his neighbor hath fulfilled the Law": because, to wit, all the precepts of the Law, chiefly those concerning our neighbor, seem to aim at the end that men should love one another. Now it is an effect of love that men give their own goods to others: because, as stated in 1 Jn. 3:17: "He that . . . shall see his brother in need, and shall shut up his bowels from him: how doth the charity of God abide in him?" Hence the purpose of the Law was to accustom men to give of their own to others readily: thus the Apostle (1 Tim. 6:18) commands the rich "to give easily and to communicate to others." Now a man does not give easily to others if he will not suffer another man to take some little thing from him without any great injury to him. And so the Law laid down that it should be lawful for a man, on entering his neighbor's vineyard, to eat of the fruit there: but not to carry any away, lest this should lead to

the infliction of a grievous harm, and cause a disturbance of the peace: for among well-behaved people, the taking of a little does not disturb the peace; in fact, it rather strengthens friendship and accustoms men to give things to one another.

Reply to Objection 2: The Law did not prescribe that women should succeed to their father's estate except in default of male issue: failing which it was necessary that succession should be granted to the female line in order to comfort the father, who would have been sad to think that his estate would pass to strangers. Nevertheless the Law observed due caution in the matter, by providing that those women who succeeded to their father's estate, should marry within their own tribe, in order to avoid confusion of tribal possessions, as stated in Num. 36:7,8.

Reply to Objection 3: As the Philosopher says (Polit. ii, 4), the regulation of possessions conduces much to the preservation of a state or nation. Consequently, as he himself observes, it was forbidden by the law in some of the heathen states, "that anyone should sell his possessions, except to avoid a manifest loss." For if possessions were to be sold indiscriminately, they might happen to come into the hands of a few: so that it might become necessary for a state or country to become void of inhabitants. Hence the Old Law, in order to remove this danger, ordered things in such a way that while provision was made for men's needs, by allowing the sale of possessions to avail for a certain period, at the same time the said danger was removed, by prescribing the return of those possessions after that period had elapsed. The reason for this law was to prevent confusion of possessions, and to ensure the continuance of a definite distinction among the tribes.

But as the town houses were not allotted to distinct estates, therefore the Law allowed them to be sold in perpetuity, like movable goods. Because the number of houses in a town was not fixed, whereas there was a fixed limit to the amount of estates, which could not be exceeded, while the number of houses in a town could be increased. On the other hand, houses situated not in a town, but "in a village that hath no walls," could not be sold in perpetuity: because such houses are built merely with a view to the cultivation and care of possessions; wherefore the Law rightly made the same prescription in regard to both (Lev. 25).

Reply to Objection 4: As stated above (ad 1), the purpose of the Law was to accustom men to its precepts, so as to be ready to come to one another's assistance: because this is a very great incentive to friendship. The Law granted these facilities for helping others in the matter not only of gratuitous and absolute donations, but also of mutual transfers: because the latter kind of succor is more frequent and benefits the greater number: and it granted facilities for this purpose in many ways. First of all by prescribing that men should be ready to lend, and that they should not be less inclined to do so as the year of remission drew nigh, as stated in Dt. 15:7, seqq. Secondly, by forbidding them to burden a man to whom they might grant a loan, either by exacting usury, or by accepting necessities of life in security; and by prescribing that when this had been done they should be restored at once. For it is written (Dt. 23:19): "Thou shalt not lend to thy brother money to usury": and (Dt. 24:6): "Thou shalt not take the nether nor the upper millstone to pledge; for he hath pledged his life to thee": and (Ex. 22:26): "If thou take of thy neighbor a garment in pledge, thou shalt give it him again before sunset." Thirdly, by forbidding them to be importunate in exacting payment. Hence it is written (Ex. 22:25): "If thou lend money to any of my people that is poor that dwelleth with thee, thou shalt not be hard upon them as an extortioner." For this reason, too, it is enacted (Dt. 24:10,11): "When thou shalt demand of thy neighbor anything that he oweth thee, thou shalt not go into his house to take away a pledge, but thou shalt stand without, and he shall bring out to thee what he hath": both because a man's house is his surest refuge, wherefore it is offensive to a

man to be set upon in his own house; and because the Law does not allow the creditor to take away whatever he likes in security, but rather permits the debtor to give what he needs least. Fourthly, the Law prescribed that debts should cease together after the lapse of seven years. For it was probable that those who could conveniently pay their debts, would do so before the seventh year, and would not defraud the lender without cause. But if they were altogether insolvent, there was the same reason for remitting the debt from love for them, as there was for renewing the loan on account of their need.

As regards animals granted in loan, the Law enacted that if, through the neglect of the person to whom they were lent, they perished or deteriorated in his absence, he was bound to make restitution. But if they perished or deteriorated while he was present and taking proper care of them, he was not bound to make restitution, especially if they were hired for a consideration: because they might have died or deteriorated in the same way if they had remained in possession of the lender, so that if the animal had been saved through being lent, the lender would have gained something by the loan which would no longer have been gratuitous. And especially was this to be observed when animals were hired for a consideration: because then the owner received a certain price for the use of the animals; wherefore he had no right to any profit, by receiving indemnity for the animal, unless the person who had charge of it were negligent. In the case, however, of animals not hired for a consideration, equity demanded that he should receive something by way of restitution at least to the value of the hire of the animal that had perished or deteriorated.

Reply to Objection 5: The difference between a loan and a deposit is that a loan is in respect of goods transferred for the use of the person to whom they are transferred, whereas a deposit is for the benefit of the depositor. Hence in certain cases there was a stricter obligation of returning a loan than of restoring goods held in deposit. Because the latter might be lost in two ways. First, unavoidably: i.e. either through a natural cause, for instance if an animal held in deposit were to die or depreciate in value; or through an extrinsic cause, for instance, if it were taken by an enemy, or devoured by a beast (in which case, however, a man was bound to restore to the owner what was left of the animal thus slain): whereas in the other cases mentioned above, he was not bound to make restitution; but only to take an oath in order to clear himself of suspicion. Secondly, the goods deposited might be lost through an avoidable cause, for instance by theft: and then the depositary was bound to restitution on account of his neglect. But, as stated above (ad 4), he who held an animal on loan, was bound to restitution, even if he were absent when it depreciated or died: because he was held responsible for less negligence than a depositary, who was only held responsible in case of theft.

Reply to Objection 6: Workmen who offer their labor for hire, are poor men who toil for their daily bread: and therefore the Law commanded wisely that they should be paid at once, lest they should lack food. But they who offer other commodities for hire, are wont to be rich: nor are they in such need of their price in order to gain a livelihood: and consequently the comparison does not hold.

Reply to Objection 7: The purpose for which judges are appointed among men, is that they may decide doubtful points in matters of justice. Now a matter may be doubtful in two ways. First, among simple-minded people: and in order to remove doubts of this kind, it was prescribed (Dt. 16:18) that "judges and magistrates" should be appointed in each tribe, "to judge the people with just judgment." Secondly, a matter may be doubtful even among experts: and therefore, in order to remove doubts of this kind, the Law prescribed that all should foregather in some chief place

chosen by God, where there would be both the high-priest, who would decide doubtful matters relating to the ceremonies of divine worship; and the chief judge of the people, who would decide matters relating to the judgments of men: just as even now cases are taken from a lower to a higher court either by appeal or by consultation. Hence it is written (Dt. 17:8,9): "If thou perceive that there be among you a hard and doubtful matter in judgment . . . and thou see that the words of the judges within thy gates do vary; arise and go up to the place, which the Lord thy God shall choose; and thou shalt come to the priests of the Levitical race, and to the judge that shall be at that time." But such like doubtful matters did not often occur for judgment: wherefore the people were not burdened on this account.

Reply to Objection 8: In the business affairs of men, there is no such thing as demonstrative and infallible proof, and we must be content with a certain conjectural probability, such as that which an orator employs to persuade. Consequently, although it is quite possible for two or three witnesses to agree to a falsehood, yet it is neither easy nor probable that they succeed in so doing: wherefore their testimony is taken as being true, especially if they do not waver in giving it, or are not otherwise suspect. Moreover, in order that witnesses might not easily depart from the truth, the Law commanded that they should be most carefully examined, and that those who were found untruthful should be severely punished, as stated in Dt. 19:16, seqq.

There was, however, a reason for fixing on this particular number, in token of the unerring truth of the Divine Persons, Who are sometimes mentioned as two, because the Holy Ghost is the bond of the other two Persons; and sometimes as three: as Augustine observes on Jn. 8:17: "In your law it is written that the testimony of two men is true."

Reply to Objection 9: A severe punishment is inflicted not only on account of the gravity of a fault, but also for other reasons. First, on account of the greatness of the sin, because a greater sin, other things being equal, deserves a greater punishment. Secondly, on account of a habitual sin, since men are not easily cured of habitual sin except by severe punishments. Thirdly, on account of a great desire for or a great pleasure in the sin: for men are not easily deterred from such sins unless they be severely punished. Fourthly, on account of the facility of committing a sin and of concealing it: for such like sins, when discovered, should be more severely punished in order to deter others from committing them.

Again, with regard to the greatness of a sin, four degrees may be observed, even in respect of one single deed. The first is when a sin is committed unwillingly; because then, if the sin be altogether involuntary, man is altogether excused from punishment; for it is written (Dt. 22:25, seqq.) that a damsel who suffers violence in a field is not guilty of death, because "she cried, and there was no man to help her." But if a man sinned in any way voluntarily, and yet through weakness, as for instance when a man sins from passion, the sin is diminished: and the punishment, according to true judgment, should be diminished also; unless perchance the common weal requires that the sin be severely punished in order to deter others from committing such sins, as stated above. The second degree is when a man sins through ignorance: and then he was held to be guilty to a certain extent, on account of his negligence in acquiring knowledge: yet he was not punished by the judges but expiated his sin by sacrifices. Hence it is written (Lev. 4:2): "The soul that sinneth through ignorance," etc. This is, however, to be taken as applying to ignorance of fact; and not to ignorance of the Divine precept, which all were bound to know. The third degree was when a man sinned from pride, i.e. through deliberate choice or malice: and then he was punished according to the greatness of the sin [*Cf. Dt. 25:2]. The fourth degree was when a man sinned from stubbornness